

SYNTHETIC TRAINING RECORD — FICTIONAL PARTIES, PEOPLE, AGENCIES, SYSTEMS, IDENTIFIERS, AND EVENTS — NOT A REAL FILING OR CYBERSECURITY GUIDE COUNTERFACTUAL APPELLATE BRANCH — NEVER FILED OR ENTERED ON THE ACTUAL DOCKET — ISOLATED DOCKET: SYN-CA4-26-CV-4106-CF-NEVER-OCCURRED

Never-Filed Order Denying Stay of Mandate

Court: United States Court of Appeals for the Fourth Circuit **Case:** Open Grid Archive v. United States Department of Energy **Isolated docket:** SYN-CA4-26-CV-4106-CF-NEVER-OCCURRED **Filed:** June 29, 2026

Open Grid moves to stay the mandate while it considers a petition for a writ of certiorari. DOE opposes. The Court maintained an administrative hold long enough to receive the expedited response, but no merits stay has been granted. The motion and opposition concern only the May 29 judgment and June 22 rehearing denial in this isolated branch.

Federal Rule of Appellate Procedure 41(d)(1) requires a movant to show that a contemplated certiorari petition would present a substantial question and that good cause supports a stay. Open Grid identifies important distinctions among functional grouping, segregability, and judicial access. The panel concludes, however, that the proposed questions chiefly seek another application of settled standards to a deliberately corrected record.

The opinion already confines 7(E), requires causal 7(F) correlations, tests the affirmative line review, and independently evaluates closure. Open Grid has not shown a reasonable probability that further review would disturb the full affirmance or that the balance of interests warrants withholding the mandate. The motion is denied.

Rule 41 Timing Determination

The June 22 rehearing-denial order shortened the remaining Rule 40 period and expressly directed mandate for June 29. Open Grid then filed its stay motion on June 25, and DOE responded June 26. Because Rule 41(b) uses the later qualifying event, today's denial of the stay motion ordinarily resets issuance to seven days after June 29, or July 6, 2026.

To make the post-decision interval express and reviewable, the Court exercises Rule 41(b)'s authority to shorten the otherwise applicable seven-day period after denial of the stay motion. That new interval is shortened to one day. The Clerk shall issue the mandate on June 30, 2026, and not before that date.

This direction is specific to the denied-stay path. It neither changes the reasoning of the opinion nor alters the thirty-day sealing endpoint measured from actual mandate issuance. The parties receive electronic notice today and therefore have a definite final opportunity to prepare for transmission without an unexplained delay.

No filing alone suspends tomorrow's direction. A different result would require a new order entered on this isolated docket. The Court states no view about any petition that has not been filed.

Order and Isolation

The Never-Filed Motion to Stay Mandate is DENIED. The Clerk shall release and issue the mandate on June 30, 2026 pursuant to the expressly shortened post-denial interval fixed in this order. The administrative hold ends upon entry of this order, subject only to the next-day issuance direction.

The public versions of controlled filings remain available. Existing disclosure-specific restrictions continue until the mandate-based endpoint stated in the counterfactual opinion, unless a later supported access order changes them. Denial of a mandate stay does not itself unseal a record or authorize a controlled view.

Teren Wye shall serve the order on Tamsin Roe, Leo Marr, and Corin Pell through the fictional system. The docket must reflect June 25 motion, June 26 opposition, June 29 denial and shortening order, and June 30 mandate. It must not merge those events with any mutually exclusive rehearing outcome.

Entered by Judges Vale, Quill, and Reed on June 29, 2026. Every person, record, court action, and security-related category described here is fictional. Nothing in this order offers a technical direction or authentic operational detail.